

Court No. - 40

Case :- WRIT - C No. - 26589 of 2021

Petitioner :- M/S Yash Footwear And Another

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Santosh Kumar Kesarwani

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Misra, J.

Hon'ble Sameer Jain, J.

Heard Sri Santosh Kumar Kesarwani, learned counsel for the petitioners, learned Standing Counsel for the respondent no.1 and Sri Udit Chandra, learned counsel for respondents 2 and 3.

Considering the nature of the order, which we propose to pass, we do not deem it necessary to issue notice to the respondent no.4, as it would unnecessarily delay the proceedings.

The case of the petitioners is that they are tenant of premises no. D 59/139-1, Sigra, Mahmoorganj Road, Varanasi, which is owned by the respondent no.4; that in the month of July, 2008, a dispute arose between the petitioner no.2 and respondent no.4, as the respondent no.4 sought to unlawfully evict the petitioner no.2, as a result, the petitioner no.2 instituted Suit No. 371 of 2008 for permanent prohibitory injunction to restrain respondent no.4 from interfering in the peaceful possession of the petitioners; that the proceedings of Suit No. 371 of 2008 are pending; that on account of the dispute between petitioner and respondent no.4, the respondent no.4 illegally disconnected the electricity supply, as a result whereof, on 13.04.2017, the petitioner no.2 applied to the electricity department for a separate electricity connection; that the differences between the petitioners and respondent no.4 gained proportion, as a result whereof, the petitioner no.2 also had to file an application under Section 28 of U.P. Act No. 13 of 1972 for enforcement of landlord's obligation to repair the premises; that the respondent no.4 opposed grant of electricity connection to the petitioners and because of his opposition, the second and third respondents have not provided electricity connection to the petitioners and are insisting on a no

objection certificate from the respondent no.4 before grant of electricity connection.

The contention of learned counsel for the petitioners is that electricity is a basic human need, the supply of which, cannot be denied just because of litigation. To support the contention, attention of the Court has also been invited to a Division Bench decision of this Court in the case of **Seema Mansoor Vs. U.P. Power Corporation Limited and others 2015 (1) ALJ 44**, wherein, after a survey of the provisions of Electricity Act, 2003 and the Electricity Supply Code, 2005 and its clauses 4.4 and Annexure 4.2, the Court observed, in paragraph 16 of its judgment, as per the report, as follows:-

"From the reading of the aforesaid provisions, it is clear that licensee is under an obligation to supply electrical energy on a proper application being made and every owner or occupier, which will include a tenant, of the premises has statutory right to apply and obtain electricity supply from the licensee subject to his fulfilling requirements under the provisions of the Electricity Act, 2003 and the Electricity Supply Code, 2005. Thus, an application for grant of electricity connection can not be refused by licensee on the ground that there is no consent of the landlord. From the scheme of the Act and the duties cast upon the licensee and right conferred upon the person making application for supply of electrical energy in case he submits indemnity bond, a lessee/tenant or occupier cannot be refused electricity connection merely for want of consent of the landlord."

On the strength of aforesaid observations and the decision of this Court, learned counsel for the petitioners submits that where landlord refuses to provide consent, which is required by clause 4.4 (a)(vi) of U.P. Electricity Supply Code, 2005, upon furnishing of an indemnity bond in the form as per Annexure 4.2, electricity connection can be provided to a tenant notwithstanding that permission has been refused by the landlord.

Sri Udit Chandra, who appears for respondents 2 and 3. submits that whether a person is a lawful occupant of the premises is a question of fact and, therefore, whether, on furnishing an indemnity bond as per form provided by Annexure 4.2, electricity connection is to be provided or not has to be determined after close examination of the documents, reports, etc. Therefore, whether the

applicant is a lawful occupants of the premises or is setting up a false claim over it, is a question of fact which can be determined after hearing both sides.

Prima facie, we find substance in the submission made by Sri Udit Chandra that before accepting an indemnity bond for the purposes of providing an electricity connection an assessment is required as to whether the applicant is a lawful occupant of the premises or is fraudulently setting up a claim over it. Such assessment can appropriately be made after giving opportunity of hearing to the lawful owner of the premises. Moreover, when a serious dispute arises as to possession and the legality of such possession, particularly, when possession of the occupant continuing from before is not admitted and there are no documents to prove lawful possession, a situation may arise where the appropriate course might be to relegate the parties to take recourse to appropriate legal remedy before a court.

Be that as it may, keeping in mind the law laid down by a co-ordinate Bench of this Court in the case of **Seema Manssor** (supra), we deem it appropriate to dispose of this petition by giving liberty to the petitioners to apply afresh for an electricity connection giving documents and evidences in respect of their lawful occupation of the premises concerned. If they are not in a position to obtain the consent of the landlord for the connection, it shall be open for the petitioners to submit indemnity bond as per Annexure 4.2 of the U.P. Electricity Supply Code, 2005. If any such application is submitted by the petitioners, before acting on the said application, the concerned authority of the electricity supply department shall cause notice to be served upon the landlord/lawful owner of the premises to submit his response to the request submitted by the petitioners. After going through the documents produced by the rival parties, a speaking order shall be passed by the competent authority in accordance with law and in the light of the observations made herein above. It is expected that the aforesaid exercise shall be completed by the competent authority within a period of six weeks from the date of filing of such application along with copy of this order.

At this stage, Sri Udit Chandra, learned counsel for the respondents 2 and 3, submits that the competent authority to take such a decision would be the

Executive Engineer, Vidyut Vitran Khand, Sigra, Varanasi and, therefore, the application, as permitted above, be made to it.

In view of above, we observe that the competent authority before whom the petitioners may make an application as permitted above is the respondent no.2.

With the aforesaid observations and directions, this petition is **disposed of**.

It is made clear that we have not expressed opinion on merit of the claim of the petitioners as to whether they are lawful occupants of the premises and whether they are entitled for an electricity connection despite objection of the lawful owner of the premises.

Order Date :- 2.11.2021

AK Pandey